

# Member Data Release Form

## ENERGY STAR® Portfolio Manager®

I, \_\_\_\_\_  
(Tenant Name) \_\_\_\_\_ (Title)  
\_\_\_\_\_  
Business Name of Record ("Business" having the following service address)  
\_\_\_\_\_  
Service Address \_\_\_\_\_ City \_\_\_\_\_ State \_\_\_\_\_ ZIP \_\_\_\_\_

understand that the building owner, manager, or authorized representative's ("Requestor") of the building that Tenant occupies at the aforementioned address is seeking to obtain energy efficiency ratings provided by the United States Environmental Protection Agency ("EPA") ENERGY STAR Portfolio Manager. In order to accomplish this, Requestor is required by Maryland State Law to provide energy consumption data for accounts specified by Requestor to EPA's ENERGY STAR Portfolio Manager. Southern Maryland Electric Cooperative "SMECO" requires Tenant consent through this application before SMECO will release your energy consumption data to Requestor and/or to EPA's ENERGY STAR Portfolio Manager. For more information regarding EPA's ENERGY STAR Portfolio Manager and the national energy performance benchmarking program, go to: <https://portfoliomanager.energystar.gov/pm/login>

### Authorization of Disclosure to EPA's ENERGY STAR Portfolio Manager Application

Tenant authorizes the following:

- (a) Permission for SMECO to release up to 24 months of historical electricity usage data for the duration of this agreement.
- (b) Permission for SMECO to electronically transfer energy usage information at the address to Requestor and/or to EPA's ENERGY STAR Portfolio Manager.
- (c) This authorization commences on the date of execution of this release and terminates the earlier of the date that Tenant vacates the address or at such time as Tenant rescinds this authorization by submitting a written notice of rescission to Requestor and SMECO.
- (d) Permission for Requestor to have access to Tenant energy usage data through EPA's ENERGY STAR Portfolio Manager.

### Member Release

Tenant declares that it is authorized to execute this release. Tenant further certifies that Requestor has authority to act on Business's behalf to request, from time to time, the disclosure and transmission by SMECO to EPA's ENERGY STAR Portfolio Manager of energy usage associated with Tenant at the address solely to benchmark Requestor's building(s) as required by Maryland State Law.

Tenant releases, holds harmless, and indemnifies SMECO from any liability, claims, demands, causes of action, damages, or expenses resulting from: (i) any release of information or data to EPA for the national energy performance benchmarking program pursuant to this authorization and release; (ii) the unauthorized use of this information or data by EPA; and (iii) any actions taken by EPA with respect to such information or data.

\_\_\_\_\_  
Tenant Signature \_\_\_\_\_ Tenant Phone \_\_\_\_\_ SMECO Account Number \_\_\_\_\_  
Executed this \_\_\_\_\_ day of \_\_\_\_\_ of \_\_\_\_\_ at \_\_\_\_\_  
Day Month Year City State ZIP  
\_\_\_\_\_  
Requestor Name \_\_\_\_\_ Requestor Phone \_\_\_\_\_ Requestor Email \_\_\_\_\_



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